
2:00 PM **LINE 6**

25-CIV-00298

GREGORY P. MANDANIS VS. CITY OF FOSTER CITY, ET AL

GREGORY P. MANDANIS
CITY OF FOSTER CITY

PRO PER
CAROLINE E. ROGERS

DEFENDANT CITY OF FOSTER CITY'S MOTION FOR JUDGMENT ON THE PLEADINGS

TENTATIVE RULING:

The City of Foster City's unopposed Motion for Judgment on the Pleadings is **DENIED without prejudice.**

Defendant served its motion by email, notwithstanding that the court's file does not indicate that the pro per plaintiff has agreed to accept service by email. Mamdanis has not responded to the motion. Accordingly, there is an insufficient showing that Mamdanis has received notice of the motion. It thus appears the court "lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM **LINE 7**

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO PER
DANIELLE K. LEWIS

PLAINTIFF'S SECOND AMENDED MOTION TO COMPEL FURTHER RESPONSES REGARDING THE DEFENDANT'S
RESPONSES TO REQUEST FOR ADMISSIONS SET 5

TENTATIVE RULING:

Plaintiff's Second Amended Motion to Compel Further Responses Regarding the
Defendant's Responses to Request for Admissions Set 5, filed June 30, 2025, is **DENIED**.

The parties are reminded that exhibits must be properly bookmarked. That is, "electronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 ["Failure to bookmark exhibits to electronically filed documents may result in rejection of the party's e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion."].)

In his Notice of Motion, plaintiff did not provide the complete address for the hearing. Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, California 94401. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

A. Background

In his Second Amended Complaint (SAC), plaintiff alleges that on May 17, 2024, he suffered damages from having been assaulted by a fellow passenger on a bus operated by defendant San Mateo County Transit District (SamTrans).

The court granted two anti-SLAPP motions brought against plaintiff's First Amended Complaint, one by SamTrans and defendants Steve Wagman and Marshall Rush (Order, signed on October 22, 2025), and the other by defendant Ann Lee (Order, signed on November 4, 2025), as to the second through eighth causes of action. The only remaining cause of action in the SAC, for "Premises Liability/Negligent Security," is pled solely against SamTrans.

Defendant responded to plaintiff's Requests for Admission Set #5 on December 16, 2025. (Ramos Decl., ¶ 2.) On January 8, 2026, plaintiff filed an initial version of the instant "Second Amended ... Motion to Compel Further Responses Regarding the Defendant's Responses to Request for Admissions [sic] Set 5." Plaintiff filed an amended version of that initial motion on January 12, 2026. However, the court *sua sponte* ordered the motion concerning the Requests for Admission (RFAs) Set No. 5 off-calendar, and scheduled an IDC instead. (Order, January 16,
